

Appearances: Department CM2 conducts non-evidentiary proceedings, such as law and motion, remotely, by Zoom videoconference pursuant to Code of Civil Procedure § 367.75 and Orange County Local Rule (OCLR) 375. All counsel and self-represented parties appearing for such hearings must check-in online through the Court’s website at <https://www.occourts.org/civil-remote-hearings> prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom’s Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing.

It is your responsibility to ensure that your audio and video are functioning properly prior to your hearing.

Parties preferring to appear in-person for law and motion hearings may do so pursuant to Code of Civil Procedure § 367.75 and OCLR 375.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and OCLR 180.

TENTATIVE RULINGS
July 23, 2026

#	Case Name	Tentative
2.	30-2023-01328383-CU-BC-CJC CommerceWest Bank vs. ADMI California, Inc.	Plaintiff CommerceWest Bank moves for an order entering judgment against defendants ADMI California, Inc., Allen D. Moyer, ADMI, Inc., and Corinthian Development Company, Inc. in the amount of \$2,176,420.01 plus interest thereon at the highest legal rate from December 15, 2025 until the date of entry of judgment. Preliminarily, the amount requested in the notice of motion appears to be a typographical error involving transposed numbers. The moving papers suggest that the correct amount is \$2,176,420.10, which is a <i>de minimus</i> increase of nine cents. The settlement stipulation that the Court approved on October 3, 2024 (ROA 47) provides as follows in paragraph 2(a):

	“Defendants shall stipulate to judgment in the sum of \$2,386,520.10 (less any payments made hereunder). The Stipulation for Entry of Judgment shall be executed concurrently herewith. Plaintiff will not file this Stipulation unless a default occurs, or Plaintiff is required to do so by the Court and agrees not to have judgment entered unless a default occurs under any ter, condition, or performance of this Stipulation. However, it is agreed that should Defendants default in their obligations as set forth above, Defendants shall be given 3 days to cure any default and, if they do not do so, this Stipulation and Judgment may be entered by the Plaintiff by ex parte motion with email notice to Defendants’ counsel at sarah@shaperolawfirm.com.” The settlement stipulation sets forth the payment terms in paragraph 2(b). These terms required defendants to pay \$45,000 on or before August 15, 2024, \$15,000 every month between October 2024 and November 2025, and the remaining balance plus interest on December 15, 2025. That paragraph further provides that if any payment is not made in a timely manner, plaintiff would be entitled to immediately enter the stipulated judgment for the full balance after a right to cure of three days was given to the defendants. Plaintiff has submitted the declaration of attorney David A. Simon with the application. In this declaration, Attorney Simon declares that defendants made a total of fourteen monthly payments of \$15,000 each on the agreement and then stopped paying. He declares that notice of the default was given to defendants on March 31, 2026 and that they failed to cure the default. Plaintiff has shown that it is entitled to entry of the stipulated judgment in the amount of \$2,176,420.10 (\$2,386,5210.10 less payments of \$210,000) plus interest at the legal rate from December 15, 2025 until the date of entry of judgment. The application of plaintiff CommerceWest Bank for an order entering stipulated judgment against defendants ADMI California, Inc., Allen D. Moyer, ADMI, Inc., and
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		Corinthian Development Company, Inc., is GRANTED. Plaintiff is ordered to give notice.
3.	<u>30-2025-01456501-CU-IC-CJC</u> Johnson vs. Farmers Insurance Exchange.	As a preliminary matter, the Court notes that Defendant Farmers Insurance Exchange's ("Defendant") oppositions to Plaintiffs Michael and Crystal Johnson's ("Plaintiffs") motions were filed one week <i>after</i> the Court ordered deadline to file. <i>Compare</i> ROAs 111, 113, 115, 117, 121 <i>with</i> ROA 85. Consequently, the Court hereby exercises its discretion to not consider Defendant's late-filed papers. Cal. Rules of Court, rule 3.1300(d) ("If the court, in its discretion, refuses to consider a late filed paper, the minutes or order must so indicate."). Before the Court are the following two (2) motions brought by Plaintiffs against Defendant: (1) a Motion to compel Further Responses to Special Interrogatories ("MF-SROG"), Set One; and (2) a Motion to Compel Further Responses to Requests for Production ("MF-PROD"), Set One. ROAs 96, 102. The underlying controversy involves claims for breach of contract, breach of the implied obligation of good faith and fair dealing, bad faith, and unfair business practices arising from Defendant's investigation of Plaintiffs' February 2024 water loss claim for their residential property. ROA 2. Plaintiffs seek an order pursuant to California Code of Civil Procedure Sections 2031.310 and 2031.320, compelling Defendant to do the following within twenty (20) days after notice of the Court's order: serve further, verified, code compliant responses and produce all non-privileged documents responsive to Plaintiffs' Requests for Production